



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

May 2, 2023

POLICE COMMISSIONER'S PENALTY DEPARTMENT

Re: CCRB Case No. 202106922 (Incident Date: November 8, 2021) regarding Police Officer Nestor Lozano, Tax No. 958843 (DADS No. 2022-27578), and Sergeant Melvin Balbuena, Tax No. 953656 (DADS No. 2022-27579)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances of this matter and determined that the actions of both Police Officer Nestor Lozano and Sergeant Melvin were proper and therefore do not warrant disciplinary action.

In this matter, the officers responded to a missing person call at a complainant's residence. Both Officer Lozano and Sergeant Balbuena, while acting in accordance with their community caretaking function, entered an apartment to perform a required preliminary investigation of an emergency call for assistance. Pursuant to Patrol Guide Procedure 207-03, "Missing Persons," and as conceded in the CCRB investigator's report, "as a matter of general NYPD procedure, officers are to start looking for a missing person from the location where he or she resides." Officers are thus trained to conduct a preliminary search of the person's immediate residence in order to verify the person is in fact missing.

In this case, both Police Officer Lozano and Sergeant Balbuena did exactly what was procedurally required of them. The complainant does not deny giving the officers permission to enter and search the residence. Furthermore, the officers' limited search of the missing person's bedroom was not for the purpose of detection, investigation, or acquisition of evidence, but rather to locate the missing person.

Notwithstanding the officers entirely justified actions, CCRB erroneously concluded that the officers were required to seek consent to enter the missing person's bedroom, complete a "Consent to Search" form, and offer a Right to Know Business Card. Here, where officers are responding to an emergency call for assistance, the application of New York City Administrative Code 14-173 is

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misplaced, as it was designed to ensure that consent for an *evidentiary* search is validly obtained. In fact, the very form CCRB claims the officers should have prepared explicitly states that consent is being voluntarily given to the Police Department to conduct a complete search of a residence “*for wanted persons and/or items which may constitute evidence, or contraband.*”

Given that both officers were acting pursuant to a community caretaking function and were not engaged in an evidentiary search, the application of New York City Administrative Code 14-173 is misplaced.

Therefore, based on the foregoing, Police Officer Lozano and Sergeant Balbuena will receive no disciplinary action for the alleged violation of Administrative Guide Procedures 304-06 (1) (Prohibited Conduct/Wrongful Search) and 304-11 (Compliance with the New York City Right to Know Act/Business Card).

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a long horizontal flourish extending to the right.

Lourdes Soto
Deputy Chief
Commanding Officer
Police Commissioner's Office